

DEFAULT DEADLINES · KEY DOLLAR RULES · POSSESSION · DISPUTE RESOLUTION

MILESTONE	DEFAULT TIMELINE	¶ REF	KEY DOLLAR RULES	
EMD to Escrow ■■■ BUSINESS days	3 business days after acceptance	3D(1)	Liquidated damages cap	3% of purchase price (1-4 units, owner-occ.) ¶29
Loan Contingency	17 days after acceptance	L(1)	Typical EMD range	1–3% of purchase price
Appraisal Contingency	17 days after acceptance	L(2)	Home warranty (seller max)	\$625 ¶Q(18)
Inspection Contingency	17 days after acceptance	L(3)	Civil penalty — wrongful cancellation	Up to \$1,000 — Civil Code §1057.3
Insurance Contingency	17 days after acceptance	L(4)	Prorations calculated on	30-day month ¶17
Review Seller Documents	17 days or 5 days after delivery	L(5)	POSSESSION RULES	
Title / Preliminary Report	17 days or 5 days after delivery	L(6)	Default possession time	6 PM on COE date upon recordation ¶3M
Seller Deliver All Docs	7 days after acceptance	N(1)	Seller leaseback ≤29 days	C.A.R. Form SIP ¶3M(2)
Sign Escrow Instructions	5 days after delivery	N(2)	Seller leaseback ≥30 days	C.A.R. Form RLAS ¶3M(2)
HOA Docs Ordered	3 days after acceptance	N(3)	Tenant-occupied property	C.A.R. Form TOPA ¶4A
Smoke/CO/Water Heater	7 days after acceptance	N(4)	DISPUTE RESOLUTION	
Final Walkthrough	5 days BEFORE COE	J/16	Step 1 — Required first	Mediation — consumermediation.org ¶30
Offer Expires	3 calendar days at 5 PM	3C/32A	Step 2 — If initialed ¶31E	Binding Arbitration — waives jury trial right
Standard COE	30 days (negotiable)	3B	Notice to Perform	Min. 2 days — NBP (buyer) or NSP (seller)
Contingency Removal	Written only — C.A.R. Form CR-B	14	Demand to Close Escrow	Min. 3 days before cancellation — DCE form

THE BIG 5 CONTINGENCIES — What They Protect & How to Remove

CONTINGENCY	¶	PROTECTS BUYER FROM...	DEFAULT	TO REMOVE
Loan (Financing)	L1/8A	Losing deposit if loan is denied or falls through	17 days	CR-B — loan box
Appraisal	L2/8B	Being stuck if home appraises below offer price — does NOT include VA rights	17 days	CR-B — appraisal box
Inspection / Investigation	L3/8C	Unforeseen property conditions found during inspection period	17 days	CR-B — after ALL reports reviewed
Insurance	L4/8D	Being unable to get homeowner's insurance at a reasonable cost — critical in CA wildfire zones	17 days	CR-B — insurance box
Title Review	L6/8F	Liens, easements, encumbrances found in Preliminary Title Report	17 days or 5 days after delivery	CR-B — after reviewing prelim

COST ALLOCATION DEFAULTS · KEY C.A.R. FORMS · ALWAYS REMEMBER

COST ALLOCATION DEFAULTS ¶Q		KEY C.A.R. FORMS		ALWAYS REMEMBER	
	Seller pays ¶Q(1)	CR-B	Remove buyer contingencies (written)	EMD goes to...	ESCROW — never directly to buyer
	Each party pays own ¶Q(7)	NBP	Notice to Buyer to Perform (2 days)	Remove contingencies...	In WRITING only — use CR-B
Insurance	Seller pays ¶Q(8)	NSP	Notice to Seller to Perform (2 days)	Days means...	CALENDAR days (EMD = business days)
Escrow policy	Buyer pays ¶Q(9)	DCE	Demand to Close Escrow (3 days)	Buyer agent is...	NOT a party to the RPA ¶11
Escrow fee	Seller pays ¶Q(10)	CC	Cancellation of Contract	Present offers...	As soon as practicable — DCE
Escrow fee	Seller pays ¶Q(12)	RR	Request for Repair	Dual agency requires...	Written consent from BOTH parties
Escrow fee	Buyer pays ¶Q(13)	SIP	Seller In Possession (≤29 days)	AVID required...	Every transaction — your violation
Escrow fee (seller)	Max \$625 ¶Q(18)	RLAS	Lease After Sale (≥30 days)	Acceptance means...	Signed + Delivered to offeror
Escrow fee	Negotiated ¶Q(4)	TOPA	Tenant Occupied Property Addendum	Verbal agreements...	Mean nothing — get it in writing
		AD	Agency Disclosure — give to YOUR buyer	Liquidated damages...	3% ONLY if Paragraph 29 is used
		TDS	Transfer Disclosure Statement	TDS cancel right...	3 days after personal delivery
		SPQ	Seller Property Questionnaire	Offer removing contingency...	Is "against Agent advice" per §1013
		IDA	Increased Deposit Addendum		